SUPERIOR COURT OF CALIFORNIA
COUNTY OF VENTURA

Tentative Ruling

2024CUOE033989: SARAH ROBERTS COOPER vs RISE LUXURY REHAB LLC
07/29/2026 in Department 44
Hearing on Motion for Final Approval of Settlement

Department Rules. Parties and counsel shall follow the Department 44 rules and Zoom protocols, available at https://www2.ventura.courts.ca.gov/Courtroom/C44.

Remote Appearances. The Court allows Zoom appearances as a courtesy to parties and counsel. The Court does not accommodate Court Call appearances. **You MUST register by 4:00 p.m. the court day before your hearing or you will be DENIED entry to the hearing:**

ZOOM Registration Link:
https://ventura-courts-ca.zoom.us/meeting/register/iqN7uhQSQMuOqs-9TQXgEQ

No advance notice is required to appear in person.

Tentative Rulings. Oral argument should address the tentative decision. To submit on the tentative decision, email courtroom44@ventura.courts.ca.gov before 8:00 a.m. on the hearing date, copying all other parties. Use the subject line "SUBMISSION ON TENTATIVE", [Case Number], [Case Title] and [Party]. If not all parties submit, the hearing will proceed, and the tentative ruling may change.

The Court may adopt, modify or reject the tentative ruling after hearing. The tentative ruling has no legal effect unless and until adopted by the Court.

Motion: Motion for Final Approval of Class Action Settlement & Approval of PAGA Settlement ("Motion")

Tentative Ruling: The Court GRANTS the Motion as follows:

1. **Approval of Key Financial Terms of Settlement**

Description	Preliminarily Approved	Approved
Gross Settlement Amount (GSA)	$250,000	$250,000
Less: Attorney Fees (not to exceed)	$62,500	$62,500
Less: Costs (not to exceed)	$25,000	$9,933
Less: Administrative Costs (not to exceed)	$8,500	$8,500
Less: PAGA Penalties	$25,000	$25,000
Less: Service Award	$5,000	$5,000

Net Settlement Before PAGA add-back	$124,000	$139,067
Plus PAGA Penalty to Aggrieved Employees (allocated per Lab. Code § 2699(m) or (i)) (65/35)[1]	$8,750	$8,750
Net Settlement After PAGA add-back	$132,750	$147,817

2. **Timely Service**. The Motion was timely served on all parties, to include service of the Motion and settlement agreement on the LWDA. (Labor Code § 2699(s)(2); Code Civ. Proc. §§ 1005, 1010.6.)

3. **Conformity with Rules of Court**. The Rules of Court govern the length and format of law and motion papers, to include that no opening or responding memorandum may exceed 15 pages absent leave of court (See Cal. R. Ct., rule 3.1113(d).); the font must be at least 12 points (Cal. R. Ct., rule 2.104); conforming exhibits that are appropriately indexed, tabbed or bookmarked, and paginated (Cal. R. Ct., rules 2.256(b) and 3.1110(f).) Counsel's compliance with these rules greatly aids in the review of papers filed with the Court and also avoids delay in the Court's issuance of a decision on the merits. Noncompliance with these rules may cause delay in approval, or the Court to disregard noncompliant materials. (See Code Civ. Proc. §§ 187 & 128; see also *Bozzi v. Nordstrom* (2010) 186 Cal.App.4th 755, 765 [trial court has broad discretion to refuse to consider papers that do not comply with rule 3.1300(d)].) Plaintiffs papers for the most part complied with these requirements, however, counsel did not label the bookmarks appropriately and is admonished to file compliant papers in the future.

4. **Class Notice, Opt Outs, Objections & Estimated Payments**

The class is defined as: All current and former hourly non-exempt employees, excluding practitioners and therapists, who worked for Defendants in California at any time from December 4, 2020, through August 17, 2025.

The Court finds that class notice was disseminated in compliance with the Preliminary Approval Order, California Rules of Court, rule 3.766, and in a manner that satisfies due process.

The Court previously approved the settlement amount to be paid with an initial payment of $75,000 and nine additional payments of $14,683.33 that total $132,149.97[2], for a total of $207,149.97 in qualified settlement funds. The final number of class members is 152, and 103 aggrieved employees. Collectively, the class members worked **6,991 workweeks**. The settlement allocation formula provided for 10 percent of the GSA to PAGA, which the Court finds to be

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[1] Effective for PAGA Notices filed before June 19, 2024, penalties recovered are allocated 75% (LWDA) / 25% (Aggrieved Employees). For PAGA Notices filed on or after June 19, 2024, penalties recovered are allocated 65% (LWDA) / 35% (Aggrieved Employees). (Labor Code § 2699(m).) The PAGA notice in this case is dated September 26, 2024, so the 65 / 35 split applies.

[2] The declaration of Jennifer Forst provides a total Qualified Settlement Fund of $207,049.97. The Court will inquire of counsel at the hearing on this Motion concerning the discrepancy and for an explanation of what accounts for the difference of $42,850.03, between the QSF amount of $207,149.97 and the gross settlement amount of $250,00.

reasonable. To date, eight class notices are undeliverable, and one class member opted out, which represents 99.34 percent participation among class members. The average individual payout is estimated to be **$755.70**, with the highest payment ranging to **$4,037.26**. The average PAGA payment is estimated to be **$84.95**, with the highest payment of **$253.48**.

5. **Attorney Fee Award**. The Court preliminarily approved a percentage [**fee recovery up to % of the common fund]**. (*Laffitte v. Robert Half Internat. Inc.* (2016) 1 Cal.5th 480, 503.) At preliminary approval, the Court explained that it uses a benchmark of 25% of the gross settlement amount, and now considers the information submitted by class counsel as well as a lodestar cross check to determine whether the final award justifies a departure from the Court's benchmark.

Lodestar Cross-Check. Class counsel request fees of **$83,325**, representing **33**% of the **Gross Settlement Amount**. In a common-fund case, the Court may award a reasonable fee calculated as a percentage of the fund and may in its discretion employ a lodestar cross-check to confirm that the percentage yields a reasonable fee. (*Laffitte v. Robert Half Internat., Inc.* (2016) 1 Cal.5th 480, 503, 506.) The lodestar is the number of hours reasonably expended multiplied by a reasonable hourly rate. (*Serrano v. Priest* (1977) 20 Cal.3d 25, 48; *PLCM Group, Inc. v. Drexler* (2000) 22 Cal.4th 1084, 1095.) Class counsel have submitted declarations reporting **243.80** hours reasonably expended (i.e., 20-year attorney Kristen Agnew 44.6 hours x $800 = $35,680; 9-year attorney Mai Tulyathan 130 hours and 8 anticipated hours x $650 = $89,700; 6-year attorney Nick Galadzhyan 15.2 hours x $700 = $10,640; 9-year attorney Elwina Grigoriyan 46 hours x 700 = $32,200.)/hr, at hourly rates ranging from **$650 to $800**, **for a lodestar of $168,220**. Having reviewed the billing records submitted, the Court finds the hours were **not reasonably** expended given the early litigation stage at which this case settled, and also that the rates **are unreasonable** for attorneys of comparable skill and experience in the Ventura County legal market. On a cross-check, the lodestar produces a negative multiplier, but as explained, the Court finds the hours expended by the four attorneys on this file are excessive in the first instance. The lodestar figure need not be scrutinized with the same precision required when the lodestar is the primary basis for the award. (*Laffitte*, at p. 505.)

The requested percentage produces a fee substantially disproportionate to the lodestar and factors set forth in *Ketchum v. Moses* (2001) 24 Cal.4th 1122, 1132, citing *Serrano v. Priest* (1977) 20 Cal.3d 25, 49 [contingent nature of the fee, risk of nonpayment undertaken at outset of representation, novelty and difficulty of questions presented, skill displayed in litigating the matter, extent to which the engagement precluded other employment, and results achieved for the class].) Thus, Plaintiff's requested fees are not justified. The Court finds that a blended rate of $625 is appropriate for the attorneys involved and that a time expenditure of approximately 100 hours is reasonable.

Based on the foregoing analysis, the Court approves an attorney fee award according to a benchmark percentage of the common fund recovery of 25% in the amount of $62,500.

6. **Service Award**. Plaintiff, **Sarah Roberts Cooper**, seeks an incentive award of **$5,000**. At preliminary approval, the Court approved a service award of up to $5,000. The Court has reviewed Ms. Cooper's declaration and finds within its discretion that an award of **$5,000** is

reasonable and reflects the class representative's actual effort, risk, and contributions to the litigation, and is not disproportionate to plaintiff's expended effort. (*Cellphone Termination Fee Cases* (2010) 186 Cal.App.4th 1380, 1393–1395.)

7. **Attorney Costs**. Costs were previously approved in an amount not to exceed **$25,000**. Plaintiff's counsel now submits a request for approval of verified costs in the amount of **$14,056.57.** The court has reviewed the information submitted in support of the requests for costs; in the absence of an invoice or further detail for the line item detailed as "Peregrine Economics LLC" in the amount of $4,123.75, the Court disallows this case. Costs are otherwise allowed in the amount of **$9,933**.

8. **Settlement Administration**. The Court previously appointed **CPT Group, Inc..** as the settlement administrator in this case. The Court has now reviewed the declaration of **Jennifer Forst** that verifies the timely sending of class notice, efforts to find class members with invalid addresses, the number of objections from class members, the number of opt outs from class members.

The Court previously approved costs for the settlement administrator in an amount not to exceed **$8,500**. According to the Declaration of **Jennifer Forst**, the estimated costs will be incurred. with additional work anticipated for issuing settlement checks, processing tax withholding and reporting, mailing payments, responding to post-distribution inquiries, handling stale or reissued checks, and preparing any final reports required by the Court or the parties. The Court finds that the final expenses requested are reasonable and approves the requested expenses up to **$8,500**.

9. **Cy Pres**. The parties designated Legal Aid at Work as the *cy pres* charity pursuant to Code of Civil Procedure section 384.

10. **Fairness of Settlement**. The Court previously found that Plaintiff met their burden to show that the settlement was obtained after an arm's-length negotiation, and is fair, adequate and reasonable. (*Dunk v. Ford Motor Co.* (1996) 48 Cal.App.4th 1794, 1801 [adequacy and reasonableness factors include consideration of case strengths, risks, and posture; settlement amount; experience of counsel].) The Court now confirms its prior findings in connection with its review of the Motion for Final Approval. Based on the final record - including the notice results, the number of objections and requests for exclusion, and the reaction of the class - the Court independently finds the settlement fair, adequate, and reasonable and in the best interests of the class. (Cal. Rules of Court, rule 3.769(g).) The Court further finds the PAGA settlement fair, reasonable, and adequate in view of PAGA's purposes (*Moniz v. Adecco USA, Inc.* (2021) 72 Cal.App.5th 56, 77), and confirms the settlement was submitted to the LWDA. Further, the release reflects that aggrieved employees may not opt out of the PAGA settlement (*Amaro v. Anaheim Arena Management, LLC* (2021) 69 Cal.App.5th 521, 541, fn. 5).

11. **Disposition.** Subject to any modifications above, the Court GRANTS the motion and will sign the proposed order **to be modified in accordance with this order**. The Court retains jurisdiction over the parties to enforce the terms of the settlement (Code Civ. Proc., § 664.6) and the judgment. Any Proposed Judgment shall not include a dismissal or findings not

contained in this order. (Cal. Rules of Court, rule 3.769(h).) The parties are ordered to otherwise effectuate the terms of the settlement in a manner not inconsistent with this Order.

The Court hereby sets the hearing for final settlement compliance on Wednesday, **January 13, 2027, at 1:30 p.m.** Plaintiff shall file a declaration concerning settlement compliance at least 10 days in advance of the compliance hearing date.

Plaintiff's counsel shall give notice.